

In T.250/89 (OJ 1992, 355) the opponent claimed that he could not have filed the statement of grounds in due time because he would have needed to refer to documents withheld by a third party. The board confirmed the line taken in earlier decisions (see G.1/86, OJ 1987, 447; T.287/84, OJ 1985, 333). When determining whether all due care required by the circumstances had been taken, the word "all" was important and failure to observe a time limit had to be the result of an oversight, not a **culpable error**. The board rejected the application for re-establishment of rights on the ground that the opponent had had sufficient material at his disposal to be able to draw up the statement of grounds in due time in accordance with Art. 108, third sentence, EPC 1973 and R. 64 EPC 1973.

4.2.2 Financial difficulties

In J.22/88 (OJ 1990, 244) the Legal Board held that financial difficulties experienced through no fault of one's own and leading to failure to observe time limits for the payment of fees could constitute grounds for granting re-establishment of rights. A prerequisite for granting the request was that the applicant should have tried with all due care to obtain financial support. The board also made it clear that for "all due care" to be proven, it had, of course, to be clear that the financial difficulties were genuine and were due to circumstances beyond the reasonable control of the applicant (see also J.31/89, T.822/93). In J.9/89 the Legal Board noted that there was no evidence before the board of any effort having been made by or on behalf of the appellant to find financial support during the critical period.

In J.11/98 the applicant requested re-establishment in respect of the time limit for paying the renewal fee, on the grounds that at the relevant times the appellant had been seeking protection under Chapter 11 of US bankruptcy law. The Legal Board confirmed the examining division's decision refusing the request. The applicant had not shown that at the relevant time it had been so lacking in funds as to be absolutely unable to make the payment (see also J.26/95, OJ 1999, 668, in chapter III.D.4.7. "Interruption of proceedings because of insolvency (Rule 142(1)(b) EPC)").

In J.6/14 the Legal Board held that it was clear from the events described and from all the evidence adduced that the appellant, an individual applicant who had been faced with serious health problems, had been in a very difficult financial situation for several years. He had proven the genuine existence of his difficulties to justify his failure to pay the renewal fee plus additional fee. The board consequently found that he had satisfied the requirements of Art. 122 EPC.

4.3. Making good the omitted act

The omitted act must be performed within two months from removal of the cause of non-compliance (R. 136(2) EPC; Art. 122(2), second sentence, EPC 1973).

According to T.167/97 (OJ 1999, 488), the requirement of Art. 122(2), second sentence, EPC 1973 implies that the completed act likewise must meet the requirements of the EPC - i.e. in the case at issue that the statement of grounds of appeal be admissible for the purpose of Art. 108, last sentence, EPC 1973. Where the statement of grounds

filed with the request for re-establishment is insufficient for the appeal to be declared admissible, the request for re-establishment must itself be declared inadmissible.

4.4. Substantiation of the request for re-establishment

Under R. 136(2) EPC (Art. 122(3) EPC 1973) the request for re-establishment has to state the grounds on which it is based, and set out the facts on which it relies. The boards consider this requirement in relation either to the admissibility of the request or to the submissions that must be taken into account when analysing the merits of the request (see in this chapter III.E.5.1. "Submissions to be taken into account").

It is a condition for the admissibility of a request for re-establishment of rights that a duly substantiated statement of grounds be submitted within the time limit for filing the request (J 15/10, see also J 19/05). A request for re-establishment of rights complies with the requirement of R. 136(2), first sentence, EPC if a conclusive case is made, setting out and substantiating the grounds and facts on which the request relies (J 15/10; T 13/82, OJ 1983, 411). Thereby it is ascertained that the factual basis for the requested decision is not altered after the expiry of the time limit for the request (J 15/10, J 19/05, T 585/08, T 479/10). Therefore, the request for re-establishment of rights must set forth the precise cause of non-compliance with the time limit concerned, specify at what time and under which circumstances the cause occurred and was removed, and present the core facts making it possible to consider whether all due care required by the circumstances had been taken in order to comply with the time limit concerned (J 15/10, T 479/10, see also J 18/98). A request for re-establishment of rights which relies on general statements only and contains no specific facts does not satisfy the requirement for a duly substantiated request under R. 136(2), first sentence, EPC (J 19/05, T 1465/08, J 15/10). The mere payment of the fee does not meet the requirements of R. 136(2) EPC (T 1465/08).

In J 19/05 the Legal Board held that the request for re-establishment of rights was not sufficiently substantiated. The request was couched in purely general terms and contained no concrete facts identifying a reason for non-observance, the chronological sequence of events or the causes underlying the action or inaction of the persons involved concerning non-payment of a renewal fee.

In T 13/82 (OJ 1983, 411) the board held that a conclusive case must be made, setting out and substantiating the facts, for the probability - at least - that a wrongful act or omission on the part of an assistant was the cause of the failure to meet the time limit: the mere possibility was not sufficient to exculpate the applicant.

In T 287/84 (OJ 1985, 333) the board decided that an application for re-establishment of rights could be considered as complying with the requirement that it had to set out the facts on which it relied (Art. 122(3) EPC 1973) if the initially filed application in writing, which did not contain such facts, could be read together with a further document, which contained them and was filed before the expiry of the period within which the application had to be filed.

In T 324/90 (OJ 1993, 33) the board held that **evidence** proving the facts set out in the application could be filed after expiry of the two-month time limit laid down in Art. 122(2) EPC 1973. Only the grounds and a statement of the facts had to be filed within the two-month period. It was not necessary to indicate in an application for re-establishment the means (e.g. medical certificates, sworn statements and the like) by which the facts relied on would be proved. Such evidence could be submitted after the time limit, if so required (see also T 667/92 of 10 March 1994, T 261/07, T 1764/08).

In J 8/95 the appellants argued that the German-language version of Art. 122(3) EPC 1973 did not stipulate that the statement of grounds for an application for re-establishment of rights had to be filed within the time limit laid down in Art. 122(2) EPC 1973. The Legal Board decided that Art. 177(1) EPC 1973 assumed a uniform legislative intent, which could only be identified on the basis of all three texts of the EPC 1973 (see also T 324/90, OJ 1993, 33).

4.5. Number of re-establishment fees due where more than one time limit is missed

In J 26/95 (OJ 1999, 668) the Legal Board held that where time limits expiring independently of one another have been missed by the applicant, each resulting in the application being deemed withdrawn, a request for re-establishment has to be filed in respect of each unobserved time limit. In accordance with Art. 122(3), second sentence, EPC 1973, a fee for re-establishment has to be paid in respect of each request. It is irrelevant whether the requests for re-establishment are filed in the same letter or in different letters and whether they are based on the same or different grounds.

In T 2017/12 (OJ 2014, A76) the appellant had missed the time limits for filing the appeal and the statement of grounds of appeal. It had paid the fee for re-establishment of rights twice, once for each missed time limit. The board refused the request for refund of one of the fees. There were no explicit provisions in the EPC dealing with the case in which several time limits had been missed. This was an indication that each time limit had to be considered separately and that, in the absence of any hint to the contrary, for the number of fees to be paid the number of missed time limits was decisive. In line with decision J 26/95, the board considered that the corresponding time limits expired independently of one another, notwithstanding the fact that they were triggered by the same event. In addition, the failure to meet either of these time limits individually results in a loss of the right to appeal. Failure to comply with either one of the two time limits would cause the appeal to be rejected as inadmissible, provided that the appeal fee was paid. Consequently, two fees for re-establishment were indeed due.

In T 1823/16 despite missing both the time limit for filing the notice and the time limit for filing the statement of grounds of appeal, the applicant only paid one re-establishment fee. However, the board held that both periods were triggered by the same event, i.e. the notification of the decision, and the hindrance to complying with them was based on one unitary factual basis. The board stated that re-establishment in respect of both periods had to be examined together and that the result would inevitably be the same. In this situation,

the board considered one re-establishment fee to be sufficient. See also T 315/87 of 14 February 1989; T 832/99.

4.6. Correction of deficiencies in the request for re-establishment

If the request for re-establishment is deficient, the principle of legitimate expectation may oblige the EPO to draw attention to the deficiency if it is readily identifiable by the EPO and the party can still correct it within the absolute time limit under R 136(1) EPC (Art. 122(2) EPC 1973) – see chapter III.A.4. "Obligation to draw attention to easily remediable deficiencies"; see e.g. T 14/89, OJ 1990, 432; J 13/90, OJ 1994, 456; J 2/94; see also T 585/08). If a warning can be expected but is not issued to the applicant within the relevant time limit, the EPO must set a period within which the applicant can correct the deficiency and perform the procedural act in due time (J 13/90, OJ 1994, 456). However, this obligation to set a new time limit does not apply to absolute time limits (such as the one year time limit under R 136(1) EPC, Art. 122(2), third sentence, EPC 1973), which by definition are non-extendable (J 34/92).

5. Merit of request for re-establishment of rights

Under Art. 122(1) EPC, for re-establishment to be allowed the requester must show that he missed the time limit despite taking all the due care required by the circumstances.

5.1. Submissions to be taken into account

In J 5/94 it was decided that the grounds on which a request for re-establishment of rights was based could be elaborated on, provided this completed the submission that had been filed in due time and thus did not alter the basis on which the original request for re-establishment had been filed (see also J 19/05, T 585/08, J 15/10, T 592/11).

In T 324/90 (OJ 1993, 33) the board held that evidence proving the facts set out in the application could be filed after expiry of the two-month time limit laid down in Art. 122(2) EPC 1973. Only the grounds and a statement of the facts had to be filed within the two-month period. Likewise in T 261/07 the board allowed the patentee, who had initially given an account of all the relevant facts to the best of its knowledge, to subsequently adduce further clarifying evidence supporting the case.

In J 5/11 the Legal Board held that the applicant for re-establishment of rights who failed to substantiate his request adequately in the first instance proceedings, in particular after being expressly invited to do so, could not normally make good that failure by submitting additional evidence with the grounds of appeal. While it was true that the primary function of the boards was to give a judicial decision on the correctness of a first-instance decision of the Office (see J 18/98), that does not necessarily mean that new evidence submitted for the first time on appeal was automatically inadmissible. A rigid rule excluding all new evidence on appeal might lead to injustice and unfairness in some cases and would not be compatible with the principles of procedural law generally recognised in the contracting states (cf. Art. 125 EPC).

In J 18/98 the examining division had refused the applicant's application for restitutio in integrum. An appeal was filed against that decision. From the established case law on Art. 122(3) EPC 1973 the Legal Board concluded that facts submitted only with the statement of grounds of appeal could not be taken into account, since the function of appeal proceedings was only to give a judicial decision upon the correctness of an earlier decision of the department of first instance (T 34/90, OJ 1992, 454).

In T 257/07 the board stated that it had been only one year after the removal of the cause for non-compliance that the appellant qualified certain statements previously made and added new facts that previously went unmentioned, in particular regarding the system for managing files and deadlines. This omission could not be subsequently remedied by the addition of further facts, as case law would only allow the appellant to "submit further evidence which clarifies the facts which were set out in the application for re-establishment" (J 2/86, OJ 1987, 362; T 261/07; see also T 742/11, T 2274/11, J 6/14).

In J 16/11 the Legal Board pointed out that the boards of appeal had consistently ruled that facts pleaded for the first time during the appeal proceedings should in principle not be taken into consideration (see J 18/98, T 257/07). In the case at issue, the board had, by its communication, informed the appellant that the evidence currently on file did not seem convincing enough and, exceptionally, gave the appellant an opportunity to improve its case at this late stage of the proceedings. However, the representative, instead of filing evidence, produced a "sworn statement" written by the appellant himself. Given that the new submission did not complement the already existing facts, but presented a new situation, these facts and evidence had to be disregarded.

5.2. General comments on due care

In numerous decisions the boards have ruled on whether "all due care required by the circumstances" had been taken. In considering this issue, the circumstances of each case must be looked at as a whole (T 287/84, OJ 1985, 333; J 17/16). The obligation to exercise due care must be considered in the light of the situation as it stood before the time limit expired. In other words, the steps the party took to comply with the time limit are to be assessed solely on the basis of the circumstances applying at that time (see e.g. T 667/92 of 10. March 1994, T 381/93 of 12. August 1994, T 743/05, J 1/07, T 1465/07, J 14/16, T 578/14). The requirements of re-establishment, and in particular of due care, **must not be interpreted in an excessive manner** that unreasonably restricts access to the board and thus prevents the board from deciding on the merits of the case (T 1465/07).

In T 30/90 the board held that the allowability of applications for re-establishment hinged on whether the conduct of the appellant and/or his representative, during the entire period after the relevant decision, was indicative of "all due care required by the circumstances". In this connection, "all due care" meant all appropriate care, i.e. as much as would be taken under the circumstances by the **average reasonably competent patentee/representative** (see also J 11/09). The board in T 1289/10 held that as a general rule, a representative acting reasonably would at least take account of known problems and apply known solutions to avoid them.